



UNITED STATES MARINE CORPS
MARINE CORPS INSTALLATIONS NATIONAL CAPITAL REGION
MARINE CORPS BASE QUANTICO 3250 CATLIN AVENUE
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4200
RCO
26 Mar 25

MEMORANDUM FOR THE RECORD

**Subj: JUSTIFICATION FOR USE OF OTHER THAN FULL AND OPEN
COMPETITION FOR A FAR PART 13 ACQUISITION UNDER THE
SIMPLIFIED ACQUISITION THRESHOLD**

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

In 2017, TSO implemented a managed IP Hosted VoIP System and Teleconferencing services to support 350 employees. These services were provided under GSA Contract GS05T09BM0017 which was awarded to TDS Metrocom, LLC (large business). This system manages and runs over a 40MB internet connection to a TDS hosted Call Manager. The TSO utilizes eight (8) analog lines over this system with fax machines and alarm systems. Currently, TSO solution is managed by via a follow-on contract awarded in 2023 to TDS for their IP VoIP Call Manager and the internet service provider (ISP) to the network that connects the Marine Corps phones to their VoIP Call Manager.

**III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN
COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:**

A. X ONLY ONE RESPONSIBLE SOURCE *(select all that apply)*:

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

X OTHER REASONS.

TSO anticipate moving from their current location to a new government owned space by December 2025; this has been delayed by unforeseen technical complications by MCCOG and was previously scheduled for May 2024. After the transition to the new location, the Marine Corps will provide an IP VoIP Solution for TSO. Once TSO have relocated, contractor services will no longer be required.

TSO conducted research to find another contractor, however after speaking with a couple of contractors, TSO learned that other firms provide a cloud based VoIP solution, but does not provide a managed network to connect phones to the IP VoIP call manager. The system that TDS is providing is currently needed because TSO can not run their voice communications over their data network because it is a commercial VoIP solution IP System. A separate network to connect the Marine Corps phones to IP VoIP call manager is required. The current network is managed TDS and the switches that connect the individual Marine Corps phones are also owned by TDS.

This is a request to utilize TDS Metrocom, LLC services because they have the specialized knowledge, managed capabilities and existing infrastructure in place to allow the current services to continue until TSO relocate to a new building. Removing TDS equipment, will be costly to the Marine Corps, time prohibitive and will result in having to completely restart the services and replace the current equipment from the ground up. This process will cause a lapse in services which will be detrimental to TSO mission.

If TDS is not selected, this would cause TSO to under go a complete reconfiguration of the IP Hosted VoIP system. Reconfiguration will include creating phone number configuration sheets for 350 employees, replacing the VoIP and Internet Service which includes providing hardware and circuits, inputting the phone configurations into the new hosted VoIP system and a testing process. This action will take approximately six (6) months to complete, while leaving TSO without phone services. Mainly, a gap in these services will adversely impact TSO mission to maintain the systems that provide pay and administer Marines.

3. *Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.*

B. BRAND NAME

Item required must be a brand name, product, or feature of a product, particular to one manufacturer. .

C. URGENT AND COMPELLING. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required: V. CERTIFICATIONS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

[Redacted Signature Area]

Signature

Name (Printed) / Phone #

Date

B. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature Area]

Signature

Name (Printed) / Phone #

Date